State of Wisconsin
DEPARTMENT OF NATURAL RESOURCES
1027 W St. Paul Ave
Milwaukee, WI 53233

Tony Evers, Governor
Karen Hyun, Ph.D., Secretary
Telephone 608-266-2621
Toll Free 1-888-936-7463
TTY Access via relay - 711

10/15/2026

IP-SE-2026-30-01917

Zilber Property Group
Jason Lueders
710 N. Plankinton Ave
Milwaukee, WI 53203

RE: Approval of state wetland individual permit for the proposed wetland impacts in the Village of Pleasant Prairie, Kenosha County

Dear Jason Lueders,

The Department of Natural Resources has completed its review of your application for a permit authorizing wetland impacts for development of 23 acres of vacant field within an industrial park into a commercial development in the Village of Pleasant Prairie, Kenosha County. You will be pleased to know your application is approved.

I am attaching a copy of your permit, which lists the conditions that must be followed to protect water quality and habitat. A copy of the permit must be posted for reference at the project site. Please read your permit conditions so that you are fully aware of what is expected of you.

Please note you are required to submit photographs of the completed project within 7 days after you've finished construction. This helps both of us to document the completion of the project and compliance with the permit conditions. Your next step will be to notify me of the date on which you plan to start construction and again after your project is complete.

If you have any questions about your permit, please call me at (608) 598-0346 or you can reach me by email at sonya.ponzi@wisconsin.gov.

Sincerely,

Sonya C. Ponzi

Sonya Ponzi
Water Management Specialist

Email CC:
Lorin Kinney – USACE
Peggy Herrick – Village of Pleasant Prairie
Andrew Shoaf – Pinnacle Engineering Group

STATE OF WISCONSIN
DEPARTMENT OF NATURAL RESOURCES
WETLAND INDIVIDUAL PERMIT
IP-SE-2026-30-02789

Application of Jason Lueders, is hereby granted under Section 281.36, Wis. Stats., and 33 U.S.C. § 1341 (CWA 401), to impact wetlands located in the SW 1/4, NW 1/4, Section 27, Township 01, Range 22E, in the Village of Pleasant Prairie, Kenosha County, subject to the following conditions:

PERMIT

1. You must notify Sonya Ponzi at phone (608) 598-0346 or email sonya.ponzi@wisconsin.gov at least 5 days before starting construction and again not more than 5 days after the project is complete.
2. You must complete the project as described **on or before 10/15/2029.** If you will not complete the project by this date, you must submit a written request for an extension prior to expiration of the initial time limit specified in the permit. Your request must identify the requested extension date. The Department shall extend the time limit for an individual permit or contract for no longer than an additional 5 years if you request the extension before the initial time limit expires. You may not begin or continue construction after the original permit expiration date unless the Department extends the permit in writing or grants a new permit.
3. This permit does not authorize any work other than what you specifically describe in your application and plans, and as modified by the conditions of this permit. If you wish to alter the project or permit conditions, you must first obtain written approval of the Department.
4. You are responsible for obtaining any permit or approval that may be required for your project by local zoning ordinances and by the U.S. Army Corps of Engineers before starting your project.
5. Upon reasonable notice, you shall allow access to your project site during reasonable hours to any Department employee who is investigating the project's construction, operation, maintenance, or permit compliance.
6. The Department may modify or revoke this permit for good cause, including if the project is not completed according to the terms of the permit or if the Department determines the activity is detrimental to the public interest.
7. You must **post a copy of this permit at a conspicuous location on the project site** , visible from the waterway, for at least five days prior to construction, and remaining at least five days after construction. You must also have a copy of the permit and approved plan available at the project site at all times until the project is complete.
8. Your acceptance of this permit and efforts to begin work on this project signify that you have read, understood, and agreed to follow all conditions of this permit.
9. You must **submit a series of photographs to the Department, within one week of completing work on the site** . The photographs must be taken from different vantage points and depict all work authorized by this permit.
10. You, your agent, and any involved contractors or consultants may be considered a party to the violation pursuant to Section 30.292, Wis. Stats., for any violations of Chapter 30, Wis. Stats., or this permit.
11. Construction shall be accomplished in such a manner as to minimize erosion and siltation into surface waters and wetlands. All erosion control measures shall meet or exceed the Department approved technical standards listed under subchapter 3 of ch. NR 151, Wis. Adm. Code. The technical standards are found at https://dnr.wi.gov/, keyword “storm water technical standard”.
12. Authorization hereby granted by the Department is transferable to any person upon priorvwritten approval of the transfer by the Department.
13. All equipment used for the project including but not limited to tracked vehicles, barges, boats, hoses, sheet pile and pumps shall be de-contaminated for invasive and exotic viruses and species prior to use and after use. To the extent practicable, equipment and gear used on infested waters shall not be used on other non-infested waters. The following steps must be taken every time you move your equipment to avoid transporting invasive and exotic viruses and species:

- **Inspect and remove** aquatic plants, animals, and mud from your equipment.
- **Drain all water** from your equipment that comes in contact with infested waters, including but not limited to tracked vehicles, barges, boats, hoses, sheet pile, and pumps.
- **Dispose** of aquatic plants and animals in the trash. Never release or transfer aquatic plants, animals, or water from one waterbody to another.
- **Wash your equipment** with hot (140 degrees F) and/or high-pressure water, OR allow your equipment to **dry thoroughly for 5 days.**

14. Final site stabilization requires the re-establishment of vegetation with non-aggressive, native species and should not contain invasive species such as Reed Canary Grass (Phalaris arundinacea).
15. No other portion of the wetlands may be disturbed beyond the area designated in the plans dated 04/27/2020.
16. If equipment is used in the wetlands, it must be low ground weight equipment as specified by the manufacturer specifications.
17. You are not allowed to temporarily or permanently stockpile excavated or fill material in the wetland outside of the authorized wetland impact areas.
18. If tracking mats are part of construction, the tracking mats are to be completely removed when construction is finished.

FINDINGS OF FACT

1. Jason Lueders, 710 N. Plankinton Ave., Milwaukee, WI 53203, filed an application with this Department on 06/18/2026, under section 281.36, Wis. Stats., to impact wetlands located in the SW 1/4, NW 1/4, Section 27, Township 01, Range 22E, in the Village of Pleasant Prairie, Kenosha County.
2. The project will consist of the development of 23 acres of vacant field with the Park into a commercial development. The project includes 2 proposed buildings totaling 208,350 square feet with exterior parking, truck docks, and stormwater management features. A wetland delineation was performed by LandCO2 in April of 2016 that included 2 wetlands. The discharge will permanently and directly affect a total of 1.46 acres of wetland.
3. The applicant proposed to compensate for wetland losses through mitigation. The Department evaluated the wetland mitigation proposal and determined that on-site mitigation was not feasible and the purchase of wetland mitigation credits from the Wisconsin Wetland Conservation Trust could fulfill the compensation obligation. The mitigation plan proposed the purchase of 2.12 acres of credit to compensate for the 1.46 acres of wetland lost due to other exemptions that reduced necessary mitigation requirements. The credits were purchased August 22, 2022 and an Affidavit of Bank Credit Purchase was submitted to the Department fulfilling the compensation obligation.
4. No practicable alternative exists which would avoid adverse impacts to wetlands, and the project will result in the least environmentally damaging practicable alternative taking into consideration practicable alternatives that avoid wetland impacts. This is the last site remaining in the Lake View Corporate Park that Zilber owns that fits the criteria for the proposed building sizes and layout presented in Alternative 4. All other previous sites located within the Park that do not contain wetlands that are owned by Zilber have already been developed. Zilber has exhausted its supply of developable sites (without wetlands or possible wetland impacts) within the Park for development of buildings like the subject property plan. Zilber has no other sites--and is unaware of any other sites--within the Park that would accommodate the development of the same manner of development that is proposed on the subject site. Moreover, all other sites within the Park are under ownership of other private party owners that have their own business interests and no known plans to make sites available for other parties to develop on their properties in order to accommodate the development of a site like that on the subject property.
5. All practicable measures to minimize adverse impacts to the functional values of the wetland have been taken.

The primary costs for Alternatives 1, 3, and 4 are functionally the same, which include but are not limited to the waterway crossing culvert, potential retaining walls to minimize grading tie-in impacts, and less than desirable stormwater management practice size and placement which may require supplementary underground storage. Alternative 2 avoids the cost of installing the waterway crossing culvert but would incur additional cost relocating the navigable creek.

Alternative 1 consolidates the impacts to the access point connection from Facility I to Facility II and the truck dock pavement of Facility I, which is necessary to accommodate adequate truck docks. A portion of the truck dock pavement south of Facility I extends into the wetland to the east and is necessary for truck maneuvering and accessibility. The extension of pavement allows for adequate room for trucks to back into and utilize the east- most truck docks. Alternative 2 shows the most optimal layout for building size, parking, and truck docks, but completely disregards the section of wetland A running through the site as well as the floodplain and waterway. Alternative 3 minimizes wetland impacts to the maximum extent by attempting to meet the required total building area with a third proposed building, Facility III. This layout does not actually meet the required building area because the proposed Facility III does not have the parking, truck docks, or building area necessary to be a leasable facility. The Preferred Alternative 4 shows the building, parking, and truck dock layout that has gone through months of coordination with the Owner, Village of Pleasant Prairie, and Kenosha County. This layout is very similar to what was previously proposed in the former, Preferred Alternative 1, but includes the previously revised north access points, along with a new proposed location for a stormwater detention pond. Parking spaces have been removed from the north parking lot to eliminate the impervious surface from the wetland area to the north and minimize overall wetland impacts in that area. As shown on the exhibits, the wetland impacts have been broken down in to what is required for the site improvements vs. floodplain improvements. The floodplain improvement areas will be regraded and restored with wetland plantings.

Alternative 1: 2 Buildings: Proposed north access points do not align with existing driveways located on the north side of 108th Street. The alignment of the proposed north access points with the existing access driveways across the street is a requirement of the Village of Pleasant Prairie. The existing access driveways across the street are established, in-use access points for existing businesses that cannot be adjusted. Alternative 2: 1 Building: Although this is the most desirable alternative for the owner due to maximized building area and full access circulation around the building, it is not pursued as the preferred alternative because it disregards the existing wetlands and waterway running through the site. Alternative 3: 3 Buildings: Does not provide adequate building area due to the fact that Facility III is too small and doesn't have enough provided parking to be a leasable facility

Technically, the constraints come from the configuration requirements laid out above, the geometric shape of the parcel, and the setbacks and easements on the site. The off-street parking configuration is optimized to avoid as much of the wetlands as possible, with maneuverability, and building collapse zone spacing. The number of parking spaces is based on local ordinance requirements and common market/company needs. Grading side slopes are also required to be 4:1 for developments within the Village of Pleasant Prairie.

6. The proposed project will not result in significant adverse impacts to wetland functional values, significant impacts to water quality, or other significant adverse environmental consequences.

Floristic Integrity

Generally, floristic integrity is low. Unweighted mean C-value is 2.27, however the absolute cover of reed canary grass was 100% at five of the wetland delineation sample points and 70% at the sixth sample point. Wetland A is dominated by reed canary grass and giant reed grass (herbaceous layer), pussy willow, cottonwood, red osier dogwood, and sandbar willow (shrub layer), and black willow and cottonwood (tree layer). Wetland B is dominated by reed canary grass in the herbaceous layer and sandbar willow in the shrub stratum.

Human Use Values

Functions for human use values are relatively low. Birding and fishing would be possible if someone walked 2.5 miles upstream from the Des Plaines River to Unnamed Stream (WBIC 735650). Due to its location within an industrial park and adjacent to an agricultural field, aesthetic values are not especially high. The wetlands would have potential to be studied for educational and scientific purposes.

Wildlife Habitat

The wetlands in the assessment area are relatively large by themselves but are also connected to a larger wetland complex and forested natural area that is relatively unfragmented. These wetlands may provide habitat for migratory birds and wildlife. The wetland has a good natural buffer to the south. The wetland has multiple stratum which provides habitat for diverse wildlife species. Wetlands are relatively uncommon in this watershed.

Fish and Aquatic Life Habitat

These wetlands likely provide a buffer for sediment and nutrient inputs from the surrounding landscape and may act as sinks for flooding. They provide habitat in the local area through heavy vegetative cover. It may be inundated long enough to provide habitat for amphibians. Unnamed Stream (WBIC 735650) may be used by fish and other aquatic species.

Shoreline Protection

The wetlands are likely to provide a level of shoreline protection of Unnamed Stream (WBIC 735650), which is connected to the Des Plaines River 2.5 miles downstream.

Flood and Stormwater Storage

Wetlands may perform some flood and stormwater storage for the immediate study area. Due to the topographic gradient found on the site, larger quantities of flood or stormwater would be converted to surface flow and enter Unnamed Stream (WBIC 735650).

Water Quality Protection

The wetlands likely provide water quality protection as nutrients and sediment from the surrounding farm fields may be reduced as water is impounded and potentially infiltrated into the soil.

Groundwater Processes

These wetlands are not known to be fed by either seeps or navigable streams. Surface saturation and high water tables were found during the wetland delineation, so some groundwater/surface water processes such as groundwater recharge likely occur.

7. Direct loss of approximately 1.46 acres of fresh (wet) meadow wetlands and a previously constructed stormwater detention basin that has since reverted to wetlands through disuse. This will directly decrease human and wildlife use values. Flood storage, stormwater storage, and groundwater processes will potentially be replaced by the two large stormwater detention basins that will be constructed as part of the development. They will be altered in location and this will affect their functions to some degree, although in the context of the site as a whole this should not change the hydrology significantly. Shoreline protection and fish and aquatic life habitat will be impaired during the time of construction. Landscaping post-construction should maintain hydrology within the unnamed creek.

8. Cumulative impacts may include large scale changes to on-site hydrology when the park is fully developed, although total stormwater detention may actually increase due to the stormwater detention features required to account for additions to impervious surfaces.
9. Secondary impacts associated with the filling of the wetlands may include a decrease in the use of adjacent natural areas by wildlife that prefer undeveloped areas or more natural areas far away from the presence of humans. Surface water additions to Unnamed Stream (WBIC 735650) will likely be altered due to the addition of a large amount of impervious surface on the site.
10. Wetland Conservation Trust Credit fees will be used to restore, establish, enhance, or preserve wetlands within the same watershed as the impact and help restore functional values.
11. The project would result in a net negative environmental impact due to the permanent loss of wetlands.
12. The Department has completed an investigation of the project site and has evaluated the project as described in the application and plans.
13. The Department of Natural Resources has determined that the agency's review of the proposed project constitutes an equivalent analysis action under s. NR 150.20(2), Wis. Adm. Code. The Department has considered the impacts on the human environment, alternatives to the proposed projects and has provided opportunities for public disclosure and comment. The department has completed all procedural requirements of s.1.11(2)(c), Wis. Stats., and NR 150, Wis. Adm. Code for this project.
14. The Department of Natural Resources has completed all procedural requirements and the project as permitted will comply with all applicable requirements of Sections 30.19 and 30.208, Wis. Stats., and chs. NR 102, 103, and 343, Wis. Adm. Code. The applicant was responsible for fulfilling the procedural requirements for publication of notices under s. 30.208(5)(c)1m., Wis. Stats., and was responsible for publication of the notice of pending application under s. 30.208(3)(a), Wis. Stats., or the notice of public informational hearing under s. 30.208(3)(c), Wis. Stats., or both. Section 30.208(3)(e), Wis. Stats., provides that if no public hearing is held, the Department must issue its decision within 30 days of the 30-day public comment period, and if a public hearing is held, the Department must issue its decision within 20 days after the 10-day period for public comment after the public hearing. Section 30.208(5)(bm), Wis. Stats., requires the Department to consider the date on which the department publishes a notice on its web site as the date of notice.

CONCLUSIONS OF LAW

1. The Department has authority under the above indicated Statutes and Administrative Codes to issue a permit for the construction and maintenance of this project.
2. The Department has complied with s. 1.11, Wis. Stats.

NOTICE OF APPEAL RIGHTS

If you believe that you have a right to challenge this decision, you should know that the Wisconsin statutes and administrative rules establish time periods within which requests to review Department decisions shall be filed. For judicial review of a decision pursuant to sections 227.52 and 227.53, Wis. Stats., you have 30 days after the decision is mailed, or otherwise served by the Department, to file your petition with the appropriate circuit court and serve the petition on the Department. Such a petition for judicial review shall name the Department of Natural Resources as the respondent.

To request a contested case hearing of any individual permit decision pursuant to section 30.209, Wis. Stats., you have 30 days after the decision is mailed, or otherwise served by the Department, to serve a petition for hearing on the Secretary of the Department of Natural Resources, P.O. Box 7921, Madison, WI, 53707-7921. The petition shall be in writing, shall be dated and signed by the petitioner, and shall include as an attachment a copy of the decision for which administrative review is sought. If you are not the applicant, you must simultaneously provide a copy of the petition to the applicant. If you wish to request a stay of the project, you must provide information, as outlined below, to show that a stay is necessary to prevent significant adverse impacts or irreversible harm to the environment. If you are not

the permit applicant, you must provide a copy of the petition to the permit applicant at the same time that you serve the petition on the Department.

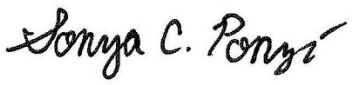
The filing of a request for a contested case hearing is not a prerequisite for judicial review and does not extend the 30-day period for filing a petition for judicial review.

A request for contested case hearing must meet the requirements of section 281.36 (3q), Wis. Stats., and sections NR 2.03 and 300.09(5), Wis. Adm. Code, and if the petitioner is not the applicant the petition must include the following information:

1. A description of the objection that is sufficiently specific to allow the department to determine which provisions of this section may be violated if the proposed discharge under the wetland individual permit is allowed to proceed.
2. A description of the facts supporting the petition that is sufficiently specific to determine how the petitioner believes the discharge, as proposed, may result in a violation of the provisions of this section.
3. A commitment by the petitioner to appear at the administrative hearing and present information supporting the petitioner's objection.
4. If the petition contains a request for a stay of the project, the petition must also include information showing that a stay is necessary to prevent significant adverse impacts or irreversible harm to the environment.

Dated at the Southeast Region Headquarters in Milwaukee, Wisconsin office on 10/15/2026.

STATE OF WISCONSIN DEPARTMENT OF NATURAL RESOURCES
For the Secretary
By:



Sonya Ponzi
Water Management Specialist